

The Motion is **GRANTED**, in part. Costs are reduced by \$337.92. Intervenor is entitled to recover \$3,084.25 in costs. Petitioner is to prepare the proposed order.

IN RE: LEACHMAN

CASE NUMBER: 26CV-0209974

Tentative Ruling on Petition for Change of Name: Petitioner Clayton William Leachman seeks to change his name to Clayton Brooks Crosby. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

EATMON, ET AL VS. LOCKWOOD, ET AL

CASE NUMBER: CVCV19-0191680

Tentative Ruling on Notice of Motion and Motion for Earnings Withholding Order: Judgment Creditors' Daniel Lockwood and Roseanne Lockwood seek an order to issue an earnings withholding order against the Judgment Debtor's spouse, pursuant to CCP section 706.109. Judgment Debtor Jason Eatmon was timely served by mail with the motion, and was additionally served by substitute service. Spouse Christine Eatmon was timely served by personal service.

Christine Eatmon has requested a continuance of the motion to allow additional time to seek counsel. Judgment Creditors oppose the request on the grounds that the request for continuance is procedurally improper, fails to establish good cause for a 60-day continuance, and fails to oppose the underlying Motion on the merits. Under the circumstances, the Court finds that granting a continuance would be in the interest of justice. This matter is continued to **Monday, July 20, 2026, 8:30 a.m. in Department 63** for hearing on the Notice of Motion and Motion for Earnings Withholding Order. Absent further clearing showing of good cause, the Court is unlikely to grant further continuances. Opposition and Reply deadlines will be per CCP § 1005(b) and be based on the new hearing date.

IN RE PARODI

CASE NUMBER: 25PB-0032864

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Norah Parodi's claims from a motor vehicle accident on November 14, 2024. The minor's mother, Bethany Parodi, was appointed as the minor's Guardian ad Litem on April 1, 2025. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will ask counsel to voir dire Petitioner regarding the following: the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation purchase of annuity. **An appearance by the Petitioner is necessary on today's calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. HUTCHINSON

CASE NUMBER: 25CVG-02154

Tentative Ruling on Motions to Set Aside Summary Judgment, Vacate Forfeiture, and Exonerate Bail: Real Party in Interest, Empire Bail Bonds, Inc. as bail agent for surety United States Fire Insurance Company, moves for an order to set aside the summary judgment, vacate the forfeiture, and exonerate the bond. The motion is made on the grounds that the Court lacked jurisdiction to enter summary judgment, that the Defendant was detained in federal authority rendering the performance of the bail bond impossible, on equitable principles of

fairness and based on CCP § 473. The matter was continued from March 23, 2026 with direction that Empire Bail Bonds personally serve the County of Shasta. An Amended Proof of Service was filed on April 15, 2026 reflecting personal service on “County Counsel’s Office – Charles Pullen” via “Brooke Luther – CEO Assistant, Authorized to Accept.” The CEO is the proper place to serve the County of Shasta. On May 13, 2026, Shasta County Counsel filed an opposition to the motion based on their contention that service was improper. The merits of the motion were not addressed in the opposition. Based upon the amended proofs of service filed on April 15, 2026, the Court deems the matter properly served.

Merits. Penal Code Section 1305(b) requires service of the notice of forfeiture on the bond company and surety. It also provides that the surety shall be released of all obligations if the notice of forfeiture is not mailed. The criminal file indicates the notice of forfeiture was mailed. However, Empire has provided evidence that the notice of forfeiture was never received by either the bond company or surety.

Evid. Code §604 provides: “The effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption. Nothing in this section shall be construed to prevent the drawing of any inference that may be appropriate.”

In *Coffey v. Shiimoto* (2015) 60 Cal. 4th 1198, 1210, the California Supreme Court cited with approval the following application of Evid. Code §604. “For example, if a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received.” *Ibid.*

Empire has submitted evidence that the notice of forfeiture was never received. The law requires the clerk to mail a copy of the notice of forfeiture to both the surety and bail agent. PC § 1305(b). The declaration is sufficient to overcome the presumption that the letter was received. This is further supported by the Empire’s argument that surety did not have any kind of scan of the document or entry in its database. The Court finds that the bail agent did not actually receive the Notice of Forfeiture.

The motion is **GRANTED**. Empire Bail Bonds, Inc. did not provide a proposed Order as required by Local Rule of Court 5.17(D). Empire Bail Bonds, Inc. is to prepare the Order.

9:00 a.m. – Review Hearings

IN RE EATTOCK

CASE NUMBER: 26PB-0033231

This matter is on calendar for confirmation of deposit. Petitioner filed the Acknowledgment of Receipt and Order and Funds for Deposit in Blocked Account, however, the name and title on the account is listed as “Doug Eattock Guardian for Gemma Lexi Eattock.” The funds in the account belong to the minor and the minor only. The account should be titled in the minor’s name. The Court will require proof that the account was opened for the minor with Doug Eattock listed as the Guardian ad Litem only. The matter is continued to **Monday, June 29, 2026 at 9:00 a.m. in Department 63** for status of blocked account. **No appearance is necessary on today’s calendar.**